WATER WELL ACCESS EASEMENT

This instrument is exempt from Michigan real estate transfer tax pursuant to MCL 207.526(a).
This instrument is exempt from county real estate transfer tax pursuant to MCL 207.505(a).

THIS WATER WELL ACCESS EASEMENT is made this 24th day of June, 2015, by **WOLVEN INVESTMENTS, LLC**, a Michigan limited liability company, whose address is 3115 Railway Drive, SW, Byron Center, MI 49315 ("**Developer**").

Statement of Facts

1. Developer is the developer of a residential site condominium project known as 43 North, located in Algoma Township, Kent County, Michigan, on the parcel legally described on the attached **Exhibit A** (the "**Project**").

2. The Master Deed of the Project is recorded on November 13, 2014, in Document No. 20141113-0094509, Kent County Register of Deeds ("**Master Deed**").

3. Capitalized terms that are not defined herein shall have the same meanings as in the Master Deed.

4. Unit 25 of the Project ("**Unit 25**") contains a Limited Common Element water well, but the well pressure is insufficient to support the irrigation system serving that Unit.

5. Developer, as the owner of Unit 25, intends to grant such Unit the non-exclusive, perpetual right to tap into a well ("**Association's Well**") that serves the Project's entrance landscaping and is located within the Private Landscape Easement as shown on the Project.

Grant

1. **Grant of Water Well Access.** Developer hereby creates, grants, and reserves to Unit 25 the nonexclusive perpetual right to access the Association's Well for the limited purpose of irrigating such Units' landscaping.

2. **Use of Association's Well**. The Co-owner of Unit 25 shall coordinate with the Developer or the Association to determine a schedule for water use from the Association's Well so as to not overload the system. Failure to abide by this requirement may increase the Well Assessment, defined herein, by an amount reasonably necessary to offset the resulting use or damages. Such damages may include, but are not limited to, the increased costs to repair or maintain the Association's Well which are attributable to the Co-owner of Unit 25 failing to coordinate use with the Developer or Association.

3. **Maintenance Obligations**. The Association's Well shall be maintained by the Association and all costs and expenses therein shall constitute expenses of administration under the Condominium Documents.

4. **Unit 25 Access Fee**. In exchange for having the right to access the Association's Well, the Co-owner of Unit 25 will pay an additional yearly assessment ("**Well Assessment**") to the Association, in an amount reasonably determined by the Developer, during the Development Period, and thereafter the Association, which shall be due at the same time and in the same manner as Assessments under Article II of the Project's Bylaws.

5. **Covenants Running With the Land**. All of the provisions of this instrument are intended to be, and shall be construed as, covenants running with the land.

[*Signatures follow on next page*]

IN WITNESS WHEREOF, the Developer has duly executed this Water Well Access Easement on the day and year first above written.

WOLVEN INVESTMENTS, LLC, a Michigan limited liability company

BY: KENSINGTON REALTY GROUP, INC., its Manager

By: _____
Dale H. Kraker, its President

Acknowledged before me by Dale H. Kraker, President of Kensington Realty Group, Inc., a Michigan corporation, the Manager of Wolven Investments, LLC, a Michigan limited liability company, on behalf of the company, in Kent County, Michigan, on June 24, 2015.

Karen J Dykstra
Karen J. Dykstra, Notary Public
Kent County, Michigan
Acting in Kent County, Michigan
My Commission Expires: April 9, 2020

KAREN J DYKSTRA
Notary Public - Michigan
Ottawa County
My Commission Expires Apr 9, 2020
Acting in the County of Kent

Prepared By and After Recording Return To:
Todd A. Hendricks
Rhoades McKee PC
55 Campau Ave., NW, Suite 300
Grand Rapids, MI 49503

Exhibit A

Part of the West 1/2 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest 1/4 corner of said Section; thence N89°52'07"E 849.42 feet along the North line of said Section to the Place of Beginning; thence continuing N89°52'07"E 487.12 feet along the North line of said Section; thence S00°39'11"W 2155.19 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; thence N89°20'49"W 33.00 feet; thence N61°42'26"W 462.35 feet; thence N34°23'25"E 141.03 feet; thence N55°45'10"W 66.00 feet; thence S34°23'25"W 144.99 feet; thence Southwesterly 33.15 feet along a 1233.00 foot radius curve to the left, the long chord of which bears S33°37'12"W 33.15 feet; thence N56°53'05"W 153.03 feet; thence Northwesterly 35.79 feet along a 50.00 foot radius curve to the right, the long chord of which bears N36°22'40"W 35.03 feet; thence Northwesterly 66.96 feet along a 60.00 foot radius curve to the left, the long chord of which bears N47°50'36"W 63.54 feet; thence N10°11'01"E 39.50 feet; thence N41°52'26"W 227.00 feet; thence N51°07'59"W 202.74 feet; thence N89°24'40"W 32.00 feet; thence N00°35'20"E 1019.55 feet along the East line of the West 281 feet of the Northwest 1/4 of said Section; thence N89°52'07"E 573.65 feet parallel with the North line of said Section; thence N00°07'53"W 417.42 feet to the Place of Beginning. Subject to the road rights of way for 11 Mile Road and Wolven Avenue, over the North and East 33.0 feet thereof. Contains 25 Units and 39.03 acres.